No. 22-451

In the
SUPREME COURT OF THE UNITED STATES

LOPER BRIGHT ENTERPRISES, *et al.*,
Petitioners,

v.

GINA RAIMONDO, SECRETARY OF COMMERCE, *et al.*,
Respondents.

On Writ of Certiorari to the United States Court of Appeals for the District of Columbia Circuit

BRIEF FOR NATIONAL SHOOTING SPORTS FOUNDATION, INC. AS AMICUS CURIAE IN SUPPORT OF PETITIONERS

H. CHRISTOPHER BARTOLOMUCCI
Counsel of Record
SCHAERR | JAFFE LLP
1717 K Street NW, Suite 900
Washington, DC 20006
cbartolomucci@schaerr-jaffe.com
(202) 787-1060

BRIAN J. FIELD
KENNETH A. KLUKOWSKI

Counsel for Amicus Curiae

July 24, 2023

TABLE OF CONTENTS

INTRODUCTION AND INTEREST OF AMICUS CURIAE 1
SUMMARY OF ARGUMENT 1
ARGUMENT 3
I. Federal Agencies Such as ATF Rely on *Chevron* and Alleged Statutory Ambiguity After Whipsawing Regulated Industries, Such as the Firearm Industry, With Changed Statutory Interpretations. 3
A. Shifting Agency Regulations Affect the Firearm Industry and Many Other Industries. 3
B. ATF Often Seeks and Courts Often Grant *Chevron* Deference to Support Changing Interpretations of Laws Affecting Second Amendment Rights. 5
CONCLUSION 7

TABLE OF AUTHORITIES

Cases

10 Ring Precision, Inc. v. Jones, 722 F.3d 711 (5th Cir. 2013) . . 5
Abramski v. United States, 573 U.S. 169 (2014) 6, 7
Atlantic Mut. Ins. Co. v. Commissioner of Internal Revenue, 523 U.S. 382 (1998) 6
Chevron, U.S.A., Inc. v. Natural Resources Defense Council, Inc., 467 U.S. 837 (1984) . . . . . passim
Citizens United v. Federal Election Comm'n, 558 U.S. 310 (2010). 5
Dada v. Mukasey, 554 U.S. 1 (2008) 6
District of Columbia v. Heller, 554 U.S. 570 (2008) 5
Guedes v. Bureau of Alcohol, Tobacco, Firearms and Explosives, 920 F.3d 1 (D.C. Cir. 2019), superseded by 45 F.4th 306 (D.C. Cir. 2022) 6, 7
McDonald v. City of Chicago, 561 U.S. 742 (2010) 5
Ron Peterson Firearms, LLC v. Jones, 760 F.3d 1147 (10th Cir. 2014) 6
United States v. Apel, 571 U.S. 359 (2014) 6

Statutes

18 U.S.C. § 922 3
18 U.S.C. § 923 . . . . . 5, 6
26 U.S.C. § 5845 3

Regulations

Bump-Stock-Type Devices, 83 Fed. Reg. 66,514 (Dec. 26, 2018) . 3, 6
Definition of "Frame or Receiver" and Identification of Firearms, 87 Fed. Reg. 24,652 (Apr. 26, 2022) 4
Factoring Criteria for Firearms with Attached "Stabilizing Braces", 88 Fed. Reg. 6,478 (Jan. 31, 2023) 5

INTRODUCTION AND INTEREST OF AMICUS CURIAE

The National Shooting Sports Foundation, Inc. (NSSF) is the trade association of the firearm, ammunition, hunting and shooting sports industry.[1] Founded in 1961, NSSF is a Connecticut nonprofit corporation recognized under Section 501(c)(6) of the Internal Revenue Code as a professional association. Today, NSSF has approximately 10,000 members, including federally licensed firearm and ammunition manufacturers, distributors, and retailers, as well as manufacturers, distributors, and retailers of products for the hunting, shooting and self-defense market, public and private shooting ranges, gun clubs, sportsmen's organizations, and endemic media. NSSF's mission is to promote, protect and preserve hunting and the shooting sports.

NSSF members produce and sell products such as those discussed in this brief, products that a federal agency previously assured them were legal under federal law. After the agency decides a product is lawful, however, it may suddenly reverse course and declare the product is now illegal, even without any intervening change in the statute. Invoking this Court's *Chevron* doctrine, the lower federal courts often defer to these shifting agency determinations, adversely affecting both NSSF's members and the purchasing public.

SUMMARY OF ARGUMENT

Federal agencies such as the Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF) rely on the *Chevron* doctrine—

[1]Counsel for amicus curiae certifies, pursuant to Supreme Court Rule 37.6, that no counsel for any party authored this brief in whole or in part and no entity or person, aside from amicus curiae, their members, and their counsel, made any monetary contribution toward the preparation or submission of this brief.

and supposed statutory ambiguity—to abruptly reverse course from their longstanding regulatory determinations. Like other industries, the firearm industry suffers from regulatory whipsaw as a result of changing agency interpretations of statutes that have not changed. ATF regularly seeks *Chevron* deference for its whipsawing rules, and, all too often, courts are willing to oblige. Ongoing litigation in the lower courts over firearm accessories such as bump stocks and stabilizing arm braces are only the latest examples of this unfortunate phenomenon. The fact that federal courts give *Chevron* deference to ATF policy shifts that regulate and restrict a fundamental constitutional right confirms that the time has come for *Chevron* to be reconsidered—and rejected.

By deferring under *Chevron* to an agency's changed interpretation of an unchanged statute, courts make it impossible for companies in regulated industries, such as the firearm industry, to rely upon an agency's existing interpretation —contrary to one of the primary values underlying the doctrine of stare decisis and, indeed, contrary to the rule of law itself. These norms serve an important function, and the fact that Congress has repeatedly rejected proposed measures that would have changed the relevant statutes makes clear that ATF should not be able to whipsaw the firearm industry with the stroke of a pen, to say nothing of courts deferring to that whipsaw.

Chevron imposes an unwarranted disadvantage on those seeking to challenge this regulatory whipsaw in court—especially when a reviewing court says it does not agree with the agency's interpretation but that the interpretation clears the low bar of being "reasonable." This is not the system that the Framers devised, nor is it the system that due process promises when a member of a regulated industry seeks to challenge government overreach.

ARGUMENT

I. Federal Agencies Such as ATF Rely on *Chevron* and Alleged Statutory Ambiguity After Whipsawing Regulated Industries, Such as the Firearm Industry, With Changed Statutory Interpretations.

Federal government agencies often argue that a statutory provision at issue in litigation is ambiguous, and that the court should therefore defer to the agency's interpretation under *Chevron, U.S.A., Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984). A prime example is in litigation involving federal gun control laws where ATF asserts a statutory interpretation and insists that it receive deference.

A. Shifting Agency Regulations Affect the Firearm Industry and Many Other Industries.

Like many highly regulated industries, the firearm industry is subject to continually shifting agency regulations. In the case of the firearm industry, the regulating agency is the ATF. This regulatory whipsaw imposes significant costs on members of this industry, impacting both the companies comprising that industry, and the prices and choices available to consumers.

An example currently in litigation, as discussed below in Part I-B, concerns "bump stocks" on firearms. ATF had previously allowed certain models of bump stocks. *Bump-Stock-Type Devices*, 83 Fed. Reg. 66,514, 66,517 (Dec. 26, 2018). However, ATF reversed course in 2018 and issued a new rule designating bump stocks as machineguns under 26 U.S.C. § 5845(b). *Id.* at 66,553-66,554. Ever since the passage of the National Firearms Act of 1934 (NFA), Pub. L. No. 73-474, 48 Stat. 1236, and subsequent federal firearms statutes such as the Gun Control Act of 1968 (GCA), Pub. L. No. 90-618, 82 Stat. 1213, it is generally illegal to own a machinegun, 18 U.S.C. § 922(o)(1); indeed, it is a felony carrying up to 10 years in prison,

id. § 924(a)(2). Thus, through this regulatory about face, ATF was able to accomplish by regulation something that Congress had not done—making illegal a product that was legally possessed by many law-abiding Americans, despite Congress not changing the underlying statute in any way.

Firearm accessories are made from raw materials that cost money and are transformed into final products by skilled craftsmen using precision-engineered heavy machinery. The financial impact of a product suddenly becoming illegal is therefore significant both to those companies and to the purchasing public.

Bump stocks are not alone in their ever-changing treatment by ATF. Another is the frame or receiver rule, which proponents of a particular political narrative refer to as "ghost guns" in order to grab as many headlines as possible. *See, e.g.*, *What is a ghost gun?*, CBS News (Apr. 11, 2022), https://www.cbsnews.com/news/what-is-a-ghost-gun/. ATF recently changed the regulatory definition of the statutory term "frame or receiver," as well as related terms such as "firearm," "gunsmith," and "complete weapon." *Definition of "Frame or Receiver" and Identification of Firearms*, 87 Fed. Reg. 24,652, 24,652, 24,653 (Apr. 26, 2022). This had a substantial and unexpected impact on the many Americans who are part of a cottage industry of private firearms manufacturers who make various custom firearm parts. *Id.* at 24,654-24,658.[2] In promulgating its new rule, ATF superseded several of its own previous policy determinations upon which the firearm industry relied, determinations under which these gunsmithing activities were legal. *Id.* at 24,730. Now they are significantly curtailed. *See id.* at 24,727-24,730.

[2] This small industry goes back to the Founding era and is woven into the history and tradition of private firearm ownership in the United States. Joseph G.S. Greenlee, *The American Tradition of Self-Made Arms*, 54 St. Mary's L. J. 35, 45-71 (2023); *see also generally* Henry J. Kauffman, *Early American Gunsmiths 1650–1850* (1952).

Another recent example concerns stabilizing arm braces. ATF is now regulating these firearm accessories. *See Factoring Criteria for Firearms with Attached "Stabilizing Braces"*, 88 Fed. Reg. 6,478 (Jan. 31, 2023). In addition to asserting the illegality of this rule under the Second Amendment, firearms statutes, and the Administrative Procedure Act (APA), 5 U.S.C. § 551 *et seq.*, *id.* at 6,499-6,507, critics point out that this rule makes it more difficult for some individuals with physical limitations to use a firearm and it imposes additional costs on companies in the firearm industry. *Id.* at 6,507-6,521. There are substantial costs of various types imposed here because of reliance on the previous regulatory framework. *Id.* at 6,507-6,508.

B. ATF Often Seeks and Courts Often Grant *Chevron* Deference to Support Changing Interpretations of Laws Affecting Second Amendment Rights.

ATF often expects *Chevron* deference in litigation, which is extraordinary given that the right to keep and bear arms is a fundamental constitutional right. *McDonald v. City of Chicago*, 561 U.S. 742, 778 (2010); *District of Columbia v. Heller*, 554 U.S. 570, 598 (2008). Such enumerated rights are "[p]remised on mistrust of governmental power." *Citizens United v. Federal Election Comm'n*, 558 U.S. 310, 340 (2010). Given that Second Amendment rights can be exercised only if individuals can lawfully obtain a firearm, it is astounding that the government would request or receive deference on laws regulating the exercise of such rights. But that is precisely what happens frequently with *Chevron* regarding federal firearms laws, often at the request of ATF.

Sometimes ATF prevails without that deference. For instance, the Fifth Circuit upheld ATF's demands that firearm retailers report certain information. *10 Ring Precision, Inc. v. Jones*, 722 F.3d 711, 714 (5th Cir. 2013). The court held that the relevant provision of the GCA, codified at 18 U.S.C. § 923(g)(5)(A), unambiguously conferred this authority. *Id.* at 718. But the

court also opined that *Chevron* would otherwise apply, *id.* at 717-718, so ATF would have prevailed even without clear congressional authorization. The Tenth Circuit similarly held that, although a different GCA provision unambiguously authorized ATF's demand for information, *Chevron* would have saved the case for ATF even without it. *See Ron Peterson Firearms, LLC v. Jones*, 760 F.3d 1147, 1155 (10th Cir. 2014) (interpreting 18 U.S.C. § 923(g)(1)(A)).

A prime example of courts allowing ATF to tack one way and then another concerns ATF's regulation of bump stocks. Take *Guedes v. Bureau of Alcohol, Tobacco, Firearms and Explosives*, 920 F.3d 1 (D.C. Cir. 2019) (denying preliminary injunction) (*Guedes I*), *superseded by*, 45 F.4th 306 (D.C. Cir. 2022) (*Guedes II*) (final judgment), *reh'g denied*, 66 F.4th 1018 (D.C. Cir. 2023), *petition for cert. docketed*, No. 22-1222 (U.S. June 20, 2023), which concerns the bump stock rules, 83 Fed. Reg. 66,514. The D.C. Circuit followed this Court's reasoning that, under *Chevron*, an "agency need not adopt * * * the best reading of the statute, but merely one that is permissible." *Guedes I*, 920 F.3d at 17 (quoting *Dada v. Mukasey*, 554 U.S. 1, 29 n.1 (2008) (Scalia, J., dissenting)); *id.* at 28 (quoting *Atlantic Mut. Ins. Co. v. Commissioner of Internal Revenue*, 523 U.S. 382, 389 (1998) (holding the test is "not whether [the agency's interpretation is] the best interpretation, of the statute but whether it represents a reasonable one.") (alteration in original)). The court applied *Chevron* deference and upheld the regulation. *Id.* at 29, 32. In *Guedes I*, the D.C. Circuit disregarded this Court's instruction that "'criminal laws are for courts, not for the Government, to construe.'" 920 F.3d at 23 (quoting *Abramski v. United States*, 573 U.S. 169, 191 (2014)).[3] *See also United States v. Apel*, 571 U.S. 359, 369 (2014). The Court did so by taking a winding road of precedents that were plainly irrelevant because

[3] *Abramski* is of particular interest to Amicus NSSF, given that it concerned a federal gun-control statute. *Abramski v. United States*, 573 U.S. 169, 172 (2014).

they predated *Abramski*. *See Guedes I*, 920 F.3d at 23-25. But such is the appeal of *Chevron*.

This Court denied certiorari in *Guedes I*, after the preliminary injunction denial, but not without a comment from Justice Gorsuch criticizing *Chevron*'s applicability. 140 S. Ct. at 789-791 (GORSUCH, J., statement respecting the denial of certiorari). Upon final judgment, the panel concluded that the statute unambiguously favored the government and thus that *Chevron* deference was unnecessary. *Guedes II*, 45 F.4th at 313.

CONCLUSION

The judgment of the Court of Appeals should be reversed.

Respectfully submitted,

H. CHRISTOPHER BARTOLOMUCCI

Counsel of Record

SCHAERR | JAFFE LLP

1717 K Street NW, Suite 900

Washington, DC 20006

(202) 787-1060

cbartolomucci@schaerr-jaffe.com

July 24, 2023

CERTIFICATE OF COMPLIANCE

Pursuant to Rule 33.1(h), I certify that the attached brief complies with the word limitation of Rule 33.1(g). It contains 1,865 words, excluding the items listed in Rule 33.1(d). The limit for any other amicus curiae is 8,000 words.

H. CHRISTOPHER BARTOLOMUCCI

Counsel of Record

SCHAERR | JAFFE LLP

1717 K Street NW, Suite 900

Washington, DC 20006

(202) 787-1060

cbartolomucci@schaerr-jaffe.com

July 24, 2023